

Terms of Service

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I. Description of service

YOU AND AMERICAN JOURNAL EXPERTS, LLC (“AJE”, “WE”, “US”, AND “OUR”) AGREE THAT YOUR ACCESS TO AND USE OF THE WEB SITES LOCATED AT WWW.AJE.COM; ANY MOBILE APPLICATIONS, SOFTWARE, OR SOFTWARE EXTENSIONS PROVIDED BY US; ANY TRANSLATION, EDITING, OR FIGURE SERVICES (“MANUSCRIPT SERVICES”); ANY BADGE OR PEER REVIEW SERVICE (“ASSESSMENT SERVICES”); AND ANY VIDEO, POSTER, OR OTHER PROMOTIONAL SERVICES (“PROMOTIONAL SERVICES”) OFFERED VIA THE WEB SITE BY US AND OUR AFFILIATES (COLLECTIVELY THE “SERVICES”) ARE SUBJECT TO YOUR AGREEMENT TO THESE TERMS OF SERVICE, WHICH WILL BECOME A BINDING AGREEMENT BETWEEN YOU AND US (THE “AGREEMENT”). WE ALLOW YOU ACCESS TO THE WEB SITE AND PROVIDE THE SERVICES ONLY UPON THE CONDITION THAT YOU ACCEPT ALL OF THE TERMS OF THIS AGREEMENT. PLEASE READ THESE TERMS CAREFULLY. YOUR CONTINUED BROWSING OF THE WEB SITE, REGISTRATION FOR AN ACCOUNT, AND/OR USE OF THE SERVICES SHALL CONSTITUTE CONSENT TO THESE TERMS. IF YOU DO NOT AGREE, DO NOT PROCEED WITH ACCOUNT CREATION OR THE USE OF THE WEB SITE AND SERVICES.

If you are using the Services under an institutional contract between your business and us or a partner organization, the specific provisions of that contract supersede this agreement where there is any conflict. For the avoidance of doubt, nothing in these Terms shall impose additional obligations on that organization. If you are using the Services as an employee of another organization that is not a party to an institutional agreement, you agree that you are solely responsible for ensuring that your use of said Services is consistent with any requirements of your workplace and that the ability to use these Services without an institutional agreement does not constitute the right to re-sell, sublicense, or share access to the Services or any derivative services thereof.

II. Account Registration

The Services are available only to persons who can form legally binding contracts under applicable law. Without limiting the foregoing, the Services are not available to individuals under the age of 18. If you are under 18, then you are not permitted to use the Services or access the Web Sites.

In order to receive the Services, you must pay in advance any applicable fee or hold an active subscription unless we agree that you may make payment pursuant to another payment plan. We may increase our fees at any time and will display the current price during service selection, including subscription registration.

You must complete the registration form in order to use the Services. You agree that all information provided by you in connection with the registration and sign-up process ("Registration Information") will be true, accurate, current, and complete and that you will promptly update your Registration Information as necessary such that it is, at all times, true, accurate, complete, and current. As part of the registration process, you will identify a username and password for your AJE account, which is the account that provides you a unique, individual login to access the Web Sites and Services (your "Account"). You are responsible for maintaining the security of your Account, passwords, and files, and for all uses of your Account and of the Services in your name. You will have one Account that is used for Services offered through our Web Sites. We reserve the right to refuse registration of, or cancel, Accounts at any time and for any reason, as we deem appropriate. Upon termination of your registration as a "user", you will no longer be allowed access to the Services, your Account, or any portions of the Web Sites that require an active account.

You agree to (a) immediately notify us of any known or suspected unauthorized use(s) of your password or Account, or any known or suspected breach of security, including loss, theft, or unauthorized disclosure of your password or credit card information; and (b) ensure that you exit from your Account at the end of each session. We will not be liable for any injury, loss or damage of any kind arising from or relating to your failure to comply with (a) and (b) or for any acts or omissions by you or someone else using your Account and/or password.

We also reserve the right to modify, suspend or discontinue the Services with or without notice at any time and without any liability to you. We may refuse to provide one or more of the Services to you or a group of users, at any time and for any reason in our sole discretion. We may periodically update the core functionality of the Web Site with the goal of improving performance or user experience. We are not obligated to make past versions of the Web Site or Services available and do not guarantee that the features or outputs will

remain consistent through such changes. Our websites are compatible with all currently supported browser versions from Microsoft, Google, Apple and Firefox on supported versions of Windows, macOS, iOS and Android.

We may use all Registration Information, subject to our compliance with our Privacy Policy that can be found [here](#) (the “Privacy Policy”). This Agreement includes terms and conditions set forth in the Privacy Policy, and the Privacy Policy is incorporated herein by reference. By indicating your agreement to this Agreement, you are consenting to have your personal data used by us as set forth in the Privacy Policy.

If you are using the Services under an institutional contract between your business and us or a partner organization, the specific provisions of that contract supersede this agreement where there is any conflict. For the avoidance of doubt, nothing in these Terms shall impose additional obligations on that organization. If you are using the Services as an employee of another organization that is not a party to an institutional agreement, you agree that you are solely responsible for ensuring that your use of said Services is consistent with any requirements of your workplace and that the ability to use these Services without an institutional agreement does not constitute the right to re-sell, sublicense, or share access to the Services or any derivative services thereof.

Additional Terms for Journal, Publisher, Institution, University, or Other Organization Accounts

If you are establishing an Account for or in the name of any entity, including a journal, publisher, institution, university, or any other organization, you represent and warrant that: (i) you are duly authorized to act for and on behalf of the entity with respect to the Account; and (ii) all information provided by you with respect to the entity and the Account will be true and accurate. You agree that you will not use the entity account for any purposes other than representation of the entity.

For Journal and Publisher Accounts, you agree that we may use the journal name and logo solely for purposes of identifying the journal in connection with the Services and not as an endorsement of our Services. We will not use any journal name or logo for endorsement purposes or in any manner that implies an endorsement by the journal of our Web Sites or Services without the prior written consent of the owner.

III. Services

You may use the Web Sites and the Services solely for your own personal, non-commercial use. You may not modify, copy, distribute, re-publish, transmit, display, perform, reproduce, reuse, resell, license, create derivative works from, transfer, or sell any

information, content, material, software, products or services obtained from the Web Sites or through the Services, except as expressly provided in these Terms of Service. The foregoing shall not apply to Manuscript Services, for which we make no claim of copyright on any submitted materials or derivative works produced in the course of service delivery. We reserve all of our statutory and common law rights against any person or entity who violates this paragraph. Any rights not expressly granted herein are reserved.

Additional Terms for Documents to be Used for Video Services

We may cancel the provision of Video Services to you if we are unable or unwilling to create a Video Abstracts video pursuant to your request. In the event that we have accepted payment for any Services, including without limitation payment for the Video Services, and subsequently refuse to provide the Service, we will promptly refund to you the applicable payment we received for which Service is not provided. The Video Services may require you to provide additional information about design, preferences, and intent during the production process. We reserve the right to cancel services in progress and issue a partial refund if our agents are unable to obtain responses to these information requests.

IV. Your intellectual property rights

We, our employees, and our affiliates make no claims on any work submitted to us through the Services. Any documents, content, material, works or other intellectual property submitted by you for our use solely in connection with, as required as a condition to us, providing the Services to you (collectively, "Documents") will remain your intellectual property or the intellectual property of any third party to whom rights belong or have been assigned. AJE editors have signed a confidentiality agreement to waive their claim to any intellectual property and Documents submitted through the Service and any derivative works resulting from their revisions.

You represent, warrant, and agree that:

1. You own all rights in the content or otherwise have obtained all necessary third party rights, including, without limitation, copyrights, for any Documents or portions thereof that belong to third parties, which are necessary for you to grant the rights that you provide us under this agreement to provide Services in connection with the Documents;
2. The Documents contain nothing that will cause injury to any person or entity;
3. The Documents contain no material that is infringing, illegal, obscene, pornographics, threatening, abusive, harassing, defamatory, libelous, or otherwise objectionable, including, without limitation, any material that could give rise to any liability to us and our

affiliates or which might adversely affect the public image, reputation or goodwill of us and our affiliates;

4. The Documents contain no material that infringes on individual or collective privacy or publicity rights, nor do they contain sensitive personal data about any individual in a way that allows the data subject to be individually identified; and
5. The Documents do not include any infringing, misappropriated or plagiarized content that you do not have the rights to use.

It is your responsibility to determine if it is necessary for you to obtain, and for obtaining, any licenses required to use third party content which is part of the Documents.

You will be responsible for making back-up and archival copies of your documents. In no event will we be responsible to you or any other person for any loss, corruption or alteration of Documents.

By submitting Documents to us through the Service, you agree to grant us a nonexclusive, worldwide, royalty-free and fully-paid, transferable, and sublicensable, perpetual, and irrevocable license to do the following:

- Host, reproduce, retain, distribute, communicate, transmit, and use your content — for example, to save your content on our systems;
- Publish, publicly perform, or publicly display your content, applicable only when you have purchased a promotional service and hosting of that content forms part of the service delivery once you have approved the content to be made public;
- Modify, reformat, display, and distribute your content, for example by editing, reformatting, or translating it;
- Sublicense these rights to:

for any text and images contained in your Documents, including all versions and any associated correspondence, files or forms, as well as to create derivative works thereof (e.g., edited and translated versions) to the extent necessary to:

1. Provide the Services to you and others;
2. Protect you, Your Content, and the Services;
3. Improve our and our affiliates' products and services and any underlying algorithms;
4. Analyze, test, develop, and deliver current and new services;
5. Facilitate research integrity investigations;
6. Enable auditing;

You agree to permit us to use proprietary automation from American Journal Experts, LLC that may apply machine learning techniques to your Content for the future improvement of

the Services.

You acknowledge and agree that Documents and aggregate data may be shared between AJE and Platform, which is our affiliate, as necessary to deliver the Services, improve the Services, and develop new products. Services identified as “Digital” are provided by Platform using proprietary technology sold by us under an agreement with Platform.

Additional Terms for Documents to be Used for Video Services

If you are providing a Document to be used in connection with the Video Services (i.e., the creation by us of a video representation or summary of your paper or article), you represent and warrant to us that you have obtained all rights necessary in the Document in order for: (1) us to use and incorporate all or any part of the Document provided by you in the Video Services Abstracts video; and (2) for you to be able to use the Video Services Abstract video for your noncommercial use. Note that if you have assigned any rights to your Document to a journal or other publication, it is your sole responsibility to ensure that you have either retained sufficient rights in the Document in order for you to engage us to provide the Video Services and create a Video Abstracts video or you have obtained permission from the applicable journal or publication to allow us to make a Video Abstracts video. If you are a journal, publisher, institution, university, or any other organization, it is your sole responsibility to ensure that you own the Document provided to us, and/or you have obtained all necessary rights from the Document author in order to allow us to create the video for you and for you to own the video.

V. Intellectual Property Rights of Others

We respect the intellectual property rights of others, and we request that our visitors do the same. If you think your work has been copied or used in a manner that constitutes copyright infringement, you may notify our copyright agent, who can be reached at:

AJE

941 West Morse Blvd

Suite 100

Winter Park, FL 32789

Attention: Copyright Infringement

Email: info@aje.com

Please include all of the following in your notification:

- a physical or electronic signature of the person authorized to act on behalf of the owner of an exclusive copyright that is allegedly infringed;
- a description of the copyrighted work you claim has been infringed;
- a description of where the material you claim is infringing is located on the site; your address, telephone number, email address and all other information reasonably sufficient to permit us to contact you;
- a statement by you that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent or the law; and
- a statement by you, made under penalty of perjury, that the above information in your notice is accurate and that you are the copyright owner or authorized to act on behalf of the owner of an exclusive right that is allegedly infringed.

VI. Indemnification

You agree to indemnify, defend, and hold us and our parents, subsidiaries, affiliates, and any directors, officers, agents, contractors, partners and employees thereof, harmless from and against any loss, liability, claim, or demand, including reasonable attorneys' fees, arising out of any claim, action, investigation or proceeding made or instituted by any third party due to or arising out of:

- (i) your breach of any representations or warranties made by you hereunder or your breach of any term of this Agreement;
- (ii) your use of the Services or the Web Site in violation of this Agreement; or
- (iii) your Documents and/or your violation of any law or the rights of a third party.

You hereby agree not to sue, assist in or be a voluntary party to assist in or be a voluntary party to, except as required by law, any action, suit, or proceeding against us for any claims, actions, suits, damages, liability, losses or expenses of whatever kind or however arising out of or relating to your use of the Web Site or the Services.

Additional Terms for Video Services

If you have purchased the Video Services, you agree to indemnify, defend and hold us and our directors, officers, agents, contractors, partners and employees, harmless from and against any loss, liability, claim, or demand, including reasonable attorneys' fees, arising out of or related to (1) claims that any Contributions or Documents provided by you for use in a Video Abstract or Video Byte infringe the rights of a third party; (2) claims by an author, a journal or publication that we do not have the rights or license to create a Video Abstract or Video Byte; (3) any violation by you of these Terms of Service, including

without limitation the terms in the Section “Our intellectual property rights” below as they relate to your use of a Video Abstract or Video Byte and the Third Party Content included therein.

VII. Our intellectual property rights

You acknowledge that we own all right, title and interest in and to the Web Site and those Services provided by us (the “Rights”), that all right, title and interest in those Services provided by our affiliates are owned by those affiliates, and that such Rights are protected by U.S. and international intellectual property laws. You also agree that you will not use any robot, spider, other automated device, or manual process to monitor or copy any content from the Web Site, or create derivatives of any content from the Service or of the proprietary software behind the Web Site or the Services; (ii) directly or indirectly, reverse engineer or aid or assist in the reverse engineering of all or any part of Services or Web Site except and only to the extent that such activity is expressly permitted by applicable law notwithstanding this limitation; or (iii) knowingly use the Services in any manner that could damage, disable, overburden, or impair those services or interfere with any other party's use and enjoyment of said services. Reverse engineering for purposes of this section includes, without limitation, decompiling, disassembly or otherwise deriving source code as well as any attempts to recover the training data of underlying machine learning models or to apply the outputs of those models to develop similar models

You further acknowledge that any trademarks, servicemarks, logos, and product and service names are our trademarks (“AJE Trademarks”). Such trademarks and other marks, logos, and names used on or in connection with the Web Sites may not be used in connection with any product or service that is not under our ownership or control. Furthermore, such trademarks may not be used in any manner that is likely to cause confusion among customers or in any manner that disparages or discredits us. All other trademarks not owned by us or our affiliates, which appear on the Web Sites are the property of their respective owners, who may or may not be affiliated with, connected to, or sponsored by us.

Additional Terms for Video Services

If you have purchased the Video Services from us, we will provide you with a Video Abstract or Video Byte. You will own the video, and we hereby assign all rights in the video to you, subject to the following limitations. The Video Abstract or Video Byte may include images, music or other content that we have licensed from a third party (hereinafter referred to as the “Images” or the “Third Party Content”). The ownership of all Third Party

Content is retained by the applicable Third Party. Because we may have included Third Party Content in the Video Abstract or Video Byte that we create for you, your use of the Video Abstract or Video Byte is subject in all respect to the following:

- You may not make more than 500,000 physical copies of the video and distribute same;
- As you retain ownership of any video created for you, except with regard to Third Party Content, you may publish the video in any form, media, software or technology of any kind now existing or developed in the future including but not limited to social media web sites such as Facebook, YouTube, etc.;
- You may not edit the video or create any derivative works thereof; the Video video may be performed, displayed, copied, distributed and used only in its entirety;
- You may not incorporate any part of the video into any other work;
- You may not use the video in any manner that implies the endorsement of a product or service, or would otherwise give rise to a claim of deceptive advertising or unfair competition;
- You may not sell copies of the video;
- You may not falsely represent that any content that we include in a video (other than Documents or Contributions provided by you) was created by you; and
- The video may not be sold, licensed, transferred or assigned by you to a third party.

If you have purchased a Video Abstract, in addition to providing you with the Video Abstract, we may also provide you with a slide deck of the Images that are incorporated into the video. These Images may be used by you subject to the following conditions:

- The Images may be reproduced by you solely in connection with your promotion of the Video Abstract and for no other purpose;
- The Images may not be sold, licensed, transferred or assigned by you to a third party;
- You may not print more than 500,000 copies of an Image;
- You may not use the Images in any manner that implies the endorsement of a product or service, or would otherwise give rise to a claim of deceptive advertising or unfair competition;
- You may not falsely represent that any Image was created by you or is owned by you.

Your ownership of the Video Abstract or Video Byte does not extend to any Images that are incorporated therein. All such Images remain the property of us or our licensors. We agree to indemnify, defend and hold you and your directors, officers, agents, contractors, partners and employees, harmless from and against any loss, liability, claim, or demand, including reasonable attorneys' fees, arising out of or related to any claim or alleged claim that the Third Party Content or other material incorporated by us into a Video Abstract or Video Byte violates the rights of a third party, provided that you are in compliance with these Terms of Service regarding the use of such Third Party Content.

VIII. Prohibited conduct

By using the Web Site or Services, you agree that you will not engage in any activity that violates applicable laws, is harmful to the Services, us and our employees, or other users of the Web Site and Services. We reserve the right to stop providing Services, terminate or suspend active accounts, and make files unavailable by deletion or removal of access in cases where infringing conduct occurs, including but not limited to the following:

1. Uploading, storing, or submitting for Services any material related to activities that exploit, harm, or threaten to harm children or any material that incites violence or instructs others in methods of performing illegal activities;
2. Uploading, storing, or submitting for Services any material intended to deceive, defraud, extort or impersonate others or to be sent as unsolicited bulk communication via electronic communications, including the editing and translation of text related to the deceptive impersonation of others to extract and exfiltrate funds or sensitive information or to gain unauthorized access to locations or information ("Phishing");
3. Uploading, storing, or submitting for services any material containing software or software code that is potentially harmful if transferred to, read by, or executed by our systems;
4. Circumventing, bypassing or breaching measures put in place to limit access to the Services, the features of the Services, or the rate at which they can be used or accessing the Services by any means other than a set of valid access credentials unique to the individual accessing those services combined with any relevant institutional credentials or access codes, including the dissemination of any institutional access codes beyond their intended group of Authorized Users by any means;
5. Abusing the services to circumvent copyright laws or plagiarism detection software or to facilitate the use of written material without permission or proper citation;
6. Sharing accounts with other users for the purpose of avoiding subscription fees;
7. Impersonating another person or entity or misrepresenting your affiliation with a person or entity, either to gain unauthorized access or to make unauthorized use of features or discounts available to specific users or groups of users;
8. Directing offensive or abusive speech toward employees and agents of AJE during customer service or other communication interactions;
9. Abusing customer service systems or benefits, such as repeatedly filing complaints without a reasonable basis (in such circumstances, we may alternatively suspend or restrict your access to the Services);
10. Hacking, exploiting, or reverse engineering the provided Services or their features or engaging in any use of the service intended to facilitate the development of a derivative product or service;

11. Using or attempting to use the Services to access or reveal proprietary information owned by us or other parties, including information that may be contained in linguistic data models;
12. Reselling the services or using them as a component in the delivery of any paid service without our express agreement;
13. Undertaking any other activity that may cause harm to us or our infrastructure, customers, employees, or affiliates;
14. Using the Web Sites in any way not listed above that constitutes illegal activity or incites others to illegal activity.

IX. Your account

1. Account Creation: Creation of an account is required to purchase or access the Services, and some services may only be available to users upon the activation of a paid subscription by the user or their parent institution.
2. Account Closure: You can close your account at any time, with or without reason, by contacting our Support team by email at support@aje.com. Closing your account will terminate your ability to use the Services and access to any services or subscriptions that you have purchased or to which you have access via an institutional agreement.
3. Account Suspension: We may suspend your account if we have reason to believe that your secure login information has been compromised by a third party.
4. Account Termination: We may terminate your account if required to do so by law or upon repeated failures to make timely payments, in addition to the breach of any provision of these terms and conditions.
5. Suspension of Features: We may temporarily or permanently disable certain features of your account, such as access to certain products or subscriptions, if we have reason to believe that you are in violation of these terms of service.
6. Notifications: Notifications about substantial updates to these terms or our privacy policy, changes to account status, and changes to products or features may be communicated to you via email at the address supplied when you register your account.
7. Contacting Support: You can contact our account support team by email at support@aje.com.
8. Subscription Services: Certain services may be available only to customers with a paid subscription. We may periodically make changes to the Services offered, changing their features or function or the services available, without any requirement to notify users. Services may occasionally be made available in a beta or pre-release state for evaluation, and we have no obligation to add these services to our permanent offerings or to maintain features and functions from these trial products in any final release. .
9. File Storage: While we do not currently limit the space available for file storage by users of Digital and Professional services, we reserve the right to institute storage limits in the

future and do not guarantee that it will retain all files submitted for Services.

10. Rate of Use: We reserve the right to limit the number of files that can be processed via automated Services in a given period in order to ensure quality of services for all users.

X. Governing law

The Web Sites are created and controlled by American Journal Experts, LLC in the State of North Carolina, U.S.A.

This Agreement shall be governed by and construed in accordance with the laws of the State of North Carolina, U.S.A., without reference to conflicts of laws provisions and, as to matters affecting copyrights, trademarks and patents, by U.S. federal law. Any dispute or claim arising out of, or in connection with, this Agreement shall be finally settled by binding arbitration in Raleigh, North Carolina, in accordance with N.C. Gen. Stat. § 1-569.1 et seq. (the "Uniform Arbitration Act") and the then-current rules and procedures of the American Arbitration Association (<http://www.adr.org>) by one (1) arbitrator appointed by the American Arbitration Association. The arbitrator shall apply the law of the State of North Carolina, without reference to rules of conflict of law or statutory rules of arbitration, to the merits of any dispute or claim. Judgment on the award rendered by the arbitrator may be confirmed, reduced to judgment, and entered in any court of competent jurisdiction. The parties You agree that, any provision of applicable law notwithstanding, the arbitrator shall have the authority to award the prevailing party its costs and reasonable attorneys' fees. In the event that the above arbitration provision is held invalid or unenforceable, then any dispute with respect to this Agreement shall be brought and heard either in the North Carolina state courts located in Wake County, North Carolina, or the federal district court for the Eastern District of North Carolina located in Raleigh, North Carolina within one (1) year of the time in which the events giving rise to such claim began, or your claim will be forever waived and barred. In such an event, you consent to the in personam jurisdiction and venue of such courts and consent to extraterritorial service of process. You agree that service of process upon you in any such action may be made if delivered in person, by courier service, by telegram, by telefacsimile or by first class mail, and shall be deemed effectively given upon receipt.

Use of the Web Sites is not authorized in any jurisdiction that does not give effect to all provisions of this Agreement. We make no claims or assurances that the Web Sites are appropriate or may be downloaded outside of the United States.

XI. Disclaimer of warranties



We are not responsible for the conduct, whether online or offline, of any user of the Web Site. The Web Site and the Services may be temporarily unavailable from time to time for various reasons. We assume no responsibility for any error, omission, interruption, deletion, defect, delay in operation or transmission, communications line failure, theft or destruction or unauthorized access to, or alteration of, the Web Site. We are not responsible for any problems or technical malfunction of any telephone network or lines, computer online systems, servers or providers, computer equipment or software, or the failure of email on account of technical problems or traffic congestion on the Internet or at any web site, including injury or damage to any person's computer related to or resulting from participating or downloading materials or Documents in connection with the Web Site or the Services. WE MAKE NO GUARANTY OF CONFIDENTIALITY OR PRIVACY OF ANY COMMUNICATION OR INFORMATION TRANSMITTED ON THE SITE OR ANY WEBSITE LINKED TO THE SITE. THE WEB SITE AND THE SERVICES ARE PROVIDED "AS-IS" AND WE DISCLAIM ANY AND ALL WARRANTIES, WHETHER EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION IMPLIED WARRANTIES OF TITLE, MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT. WE CANNOT GUARANTEE AND DO NOT PROMISE ANY SPECIFIC RESULTS OR PUBLICATION OUTCOMES FROM USE OF THE WEB SITE AND/OR THE SERVICES

Without limiting the generality of the foregoing, you acknowledge and agree that we do not: (i) review the substance of Documents submitted to it for Services unless expressly stated in the Service description; (ii) represent, warrant or guarantee that your use of the service will result in publication of your documents; or (iii) guarantee the quality, accuracy or results of the Services. No refunds shall be provided except expressly agreed to by Us or our authorized representative either in these Terms or in written correspondence to you. When using automated language Services, you acknowledge and agree that while these Services are designed and optimized to produce accurate outputs, we can not guarantee the preservation of intended textual meaning or exclude the possibility of substantive changes and therefore cannot guarantee the suitability of automatically edited and translated material for publication or the accuracy of automated assessments.

XII. Limitation of liability

IN NO EVENT WILL WE, OUR PARENTS, SUBSIDIARIES, AFFILIATES AND OUR DIRECTORS, OFFICERS, AGENTS, CONTRACTORS, PARTNERS AND EMPLOYEES BE LIABLE TO YOU OR ANY THIRD PERSON FOR ANY INDIRECT, CONSEQUENTIAL, EXEMPLARY, INCIDENTAL, SPECIAL OR PUNITIVE DAMAGES, INCLUDING DAMAGES FOR ANY LOST PROFITS OR LOST DATA ARISING FROM YOUR USE OF THE WEB SITE OR THE SERVICES, EVEN IF WE ARE AWARE OR HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. TO THE FULLEST EXTENT PERMITTED BY LAW, WE DISCLAIM ANY WARRANTIES FOR SERVICES

RECEIVED THROUGH OR ADVERTISED ON THE WEB SITE. NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED HEREIN, OUR LIABILITY TO YOU FOR ANY CAUSE WHATSOEVER, AND REGARDLESS OF THE FORM OF THE ACTION, WILL AT ALL TIMES BE LIMITED TO THE LESSER OF: (A) THE AMOUNT PAID, IF ANY, BY YOU TO US FOR THE SERVICES; AND (B) TEN DOLLARS (\$10). THE PARTIES AGREE THAT THESE LIMITATIONS ARE AN ESSENTIAL PART OF THIS AGREEMENT AND SHALL SURVIVE ANY REMEDY'S FAILURE OF ESSENTIAL PURPOSE. CERTAIN STATE LAWS DO NOT ALLOW LIMITATIONS ON IMPLIED WARRANTIES OR THE EXCLUSION OR LIMITATION OF CERTAIN DAMAGES. IF THESE LAWS APPLY TO YOU, SOME OR ALL OF THE ABOVE DISCLAIMERS, EXCLUSIONS OR LIMITATIONS MAY NOT APPLY TO YOU, AND YOU MAY HAVE ADDITIONAL RIGHTS.

We shall not be liable for any failure to perform our obligations hereunder where such failure results from any cause beyond our reasonable control, including, without limitation, mechanical, electronic or communications failure or degradation (including "line-noise" interference).

XIII. Payment terms

1. Amount owed: The amount owed for any Services or subscriptions is the amount displayed at the time of order completion and is due in full prior to the delivery of any Services or subscriptions unless otherwise expressly agreed by us .
2. Payments: You grant us, and any and all payment processors which may process payment transactions on our behalf, the right to close the FX contract and to transfer the funds relating to payments executed via Oxxo, boleto bancario, Alipay, credit cards or PAYPAL. Any and all payment processors which may process transactions on behalf of a merchant do not account for collecting taxes, which might originate in relation to this operation.
3. Subscription Payment: Payment for a subscription must be made in order to start the subscription period, which will commence on the date of purchase. European Union consumers who cancel their subscription within 14 days of their first payment are eligible for a full refund.
4. Overpayment: In the case of overpayment, we will provide a credit to your AJE account which is not redeemable for cash. The AJE credit can be used to submit future manuscripts (excluding subscriptions) for 5 years.
5. Recurring Payments: When you purchase any Services on a subscription basis, you agree that you will pay the owed amount at the start of each billing period until the subscription agreement is ended by either you or us. Your provided payment method will be automatically charged at the start of each billing period. You may cancel anytime.

6. Refunds: No refund is offered for any subscribed or purchased services unless expressly agreed by us or our authorized representative or required by law.
7. Customers in Brazil: In order to allow the remittance of funds resulting from payment of goods and/or services acquired from us, the user acknowledges and accepts PPRO Brasil Ltda. ("PPRO") as a payment service provider that enables the acquisition of goods and services, in Brazil or abroad, by means of a digital payment solution, integrated to our e-commerce platform, through a foreign exchange transaction carried out by an institution authorized to operate in the foreign exchange market, foreseen in Circular BCB No. 3.691/13, as amended, and Resolution BCB No. 137/21. Once the registration in our website is completed, the user will be able to choose among the local payment methods that PPRO makes available. The user acknowledges and declares that, before making the purchase, they knew of and had access to the information about the goods and services offered, in addition to the specific conditions related to the user's rights, according to the payment instrument used at the time of purchase, fully and unlimitedly exempting PPRO from any liability in relation to the purchase carried out on our website. The user also declares they are aware of the requirement to and agree to only provide correct and truthful information when making the purchase, fully and unlimitedly exempting PPRO from any responsibility for the data provided.
8. Cancellation: No cancellation requests will be accepted for confirmed orders.

XIV. Customer Communications

By signing up for a free account with us, you are opting in to receive communications from us regarding our products and services, including customer newsletters, special offers and exclusive discounts. You may opt out of these communications at any time by visiting <http://secure.aje.com/optout> or by following the "unsubscribe" link at the bottom of any email. For more details about how we collect and use customer information, please visit our [Privacy Policy](#) page.

When you purchase Services through your AJE account, you are opting in to receive transactional communications about the status of your purchase, for example, requests for clarification or notifications of completion. These transactional communications are limited to those necessary to deliver the service in a timely manner and verify its satisfactory completion.

We reserve the right to refuse service to customers who ask us to engage in unethical publishing practices, are verbally abusive toward our Customer Service agents, and/or exploit our services and policies.

XV. Credits, Holds and Offsets

Please be advised that if we receive any claim or threat of a claim, which is related to your use of the Services, we may put a “hold” on any account you have with us, including any monies held on your behalf. Furthermore, to the extent that you owe us any amounts as a consequence of your use of the Services or our settlement of any claim made against you, we may, in our sole discretion, deduct all or a portion of such amounts from any amounts held by us in your account. Any such deduction will not relieve you of any obligation to pay the remainder of any amounts due from you to us.

XVI. Sanctions Compliance

We comply with all sanctions/restrictions imposed by the US Department of the Treasury, Office of Foreign Assets Control (OFAC).

XVII. Miscellaneous

This Agreement sets forth the entire agreement between you and us pertaining to your use of the Web Site and the Services. We reserve the right, at our sole discretion, to change, modify, add, or delete portions of this Agreement at any time, without further notice. If we do this, we will post the changes to this Agreement on this page and will indicate at the top of this page the new effective date (i.e., the LAST UPDATED date). The changes will only affect your use of the Services or the Web Site after the effective date of the change unless we clearly indicate otherwise. While we may notify you directly of material changes on this Web Site, you must check this page from time to time to take notice of any changes we make, as they are binding on you. Your continued use of the Services or the Web Site after any such changes constitutes your acceptance of the revised Agreement. If you do not agree to abide by this Agreement or any future revised Agreement, do not use or access the Services or the Web Site. It is your responsibility to regularly review this Agreement. If any provision of this Agreement is held invalid or unenforceable, such provision shall be revised to the extent necessary to cure the invalidity or unenforceability, and the remainder of this Agreement shall continue in full force and effect. Our failure to exercise any right or provision of this Agreement shall not constitute a waiver of such right or provision.

Links and Third Party Services

As a courtesy to you, the Web Sites may offer links to other websites. We are not responsible for the contents of any website pages created and maintained by organizations independent of us. Visiting any such third-party website pages is at your own risk. We have no control of these third-party website pages, nor can we guarantee the accuracy, completeness, or timeliness of information in third-party website pages.

Your use of such information is voluntary, and your reliance on such information should be made only after independent review. References to commercial products or services within any such third-party website pages do not constitute or imply an endorsement by us. If you receive any products or services from a third party web site, such as iThenticate, your use of such services or receipt of such products will be subject to the terms and conditions of the applicable third party web site. By using the Web Sites and Services you acknowledge that we are responsible neither for the availability of, nor the content located on or through any third-party website pages.

Confidentiality

Except as otherwise provided herein, we will treat all Documents you provide to us in confidence and will disclose the Documents only to our employees and agents that are providing, maintaining, and developing the Services or future services that we may offer. Except as provided herein, your Documents will not be provided to any other third party and will not be used for any purpose other than to provide Services to you. With respect to certain Services, we have a policy of providing copies of the Scorecards that are created through a unique verification code. You maintain responsibility and control of this verification code and therefore access to your Scorecards.

Law Enforcement

You acknowledge that we may cooperate with law enforcement organizations that have lawfully requested information pursuant to a valid subpoena or court order, including, but not limited to, names, email addresses, transactions, IP addresses, telephone numbers, and email records. Additionally, you acknowledge that we will proactively notify law enforcement of any material submitted or posted to the Web Sites that indicates abuse of a minor or that indicates or credibly threatens harm against any person.

Consideration

You acknowledge that these Terms of Service are supported by reasonable and valuable consideration, the receipt and adequacy of which are hereby acknowledged. Without limiting the foregoing, you acknowledge that such consideration includes, without limitation, your use of the Web Sites and receipt or use of data, content, products and/or Services through the Web Sites.

General Provisions

a. Enforceability. If any provision in this Agreement is found to be void, invalid or otherwise unenforceable, then that provision shall be deemed to be superseded by a valid, enforceable provision or that matches the intent of the original provision as closely as

possible. The remainder of the Agreement shall continue to be enforceable and valid according to terms contained herein.

b. Entire Agreement. This Agreement sets forth the entire agreement between you and us pertaining to your use of the Web Sites and the Services. We reserve the right, at our sole discretion, to change, modify, add, or delete portions of this Agreement at any time without further notice. If we do this, we will post the changes to this Agreement on this page and will indicate at the top of this page the new effective date (i.e., the LAST UPDATED date). Your continued use of the Services or the Web Sites after any such changes constitutes your acceptance of the revised Agreement. If you do not agree to abide by this Agreement or any future revised Agreement, do not use or access the Services or the Web Sites. It is your responsibility to regularly review this Agreement. If any provision of this Agreement is held invalid or unenforceable, such provision shall be revised to the extent necessary to cure the invalidity or unenforceability, and the remainder of this Agreement shall continue in full force and effect. Our failure to exercise any right or provision of this Agreement shall not constitute a waiver of such right or provision.

c. No Waiver. The failure of us to exercise or enforce any right or provision of this Agreement shall not constitute a waiver of said right or provision. Neither party hereto shall be deemed to be in default of any provision of this Agreement or for failure in performance resulting from acts or events beyond the reasonable control of such party and arising without its fault or negligence, including, but not be limited to, acts of God, civil or military authority, interruption of electric or telecommunication services, civil disturbances, acts of war or terrorists, strikes, fires, floods or other catastrophes.

d. Headings & Construction. The section titles in this Agreement are for your convenience only and carry no contractual or legal effect whatsoever. The language in this Agreement shall be interpreted in accordance with its fair meaning and shall not be strictly interpreted for or against either party.

e. Contact Us. For questions regarding the terms of this Agreement, contact us at info@aje.com, or AJE, 941 West Morse Blvd, Suite 100, Winter Park, FL 32789, United States.

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